

1 ENGROSSED SENATE
2 BILL NO. 1555

By: Reinhardt of the Senate

3 and

4 Pae of the House

5
6 An Act relating to Medicaid home- and community-based
7 services; amending 10 O.S. 2021, Section 1408, which
8 relates to definitions; modifying certain definition;
9 updating statutory language and references; and
10 providing an effective date.

11 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

12 SECTION 1. AMENDATORY 10 O.S. 2021, Section 1408, is
13 amended to read as follows:

14 Section 1408. A. "Individual with intellectual disability" as
15 used in ~~Sections~~ Section 1406 ~~through 1424 et seq.~~ of this title
16 means a person who ~~has significantly subaverage functioning,~~
17 ~~intelligence quotient of less than seventy (70), manifested before~~
18 ~~the age of eighteen (18) and existing concurrently with related~~
19 ~~limitations in two or more of the following applicable adaptive~~
20 ~~skill areas:~~

21 1. ~~Communication;~~

22 2. ~~Self-care;~~

23 3. ~~Home living;~~

24 4. ~~Social skills;~~

1 ~~5. Use of community resources;~~

2 ~~6. Self direction;~~

3 ~~7. Health and safety;~~

4 ~~8. Functional academics;~~

5 ~~9. Leisure; and~~

6 ~~10. Work~~ meets the criteria for intellectual disorder as listed
7 in the Social Security Administration Listing of Impairments for
8 disability evaluation, 20 C.F.R., Part 404, Subpart P.

9 B. "Resident" as used in ~~Sections~~ Section 1406 ~~through 1424~~ et
10 seq. of this title shall mean a person admitted to and in residence
11 in any of the institutions named in Section 1406 of this title, or
12 on a vacation or extended vacation status from such institution.

13 C. "Developmental disability" as used in ~~Sections~~ Section 1406
14 ~~through 1424~~ et seq. of this title means a severe, chronic
15 disability of a person which:

16 1. Is attributable to a mental or physical impairment or
17 combination of mental and physical impairments, such as intellectual
18 developmental disorder, cerebral palsy, or autism;

19 2. Is manifested before the person attains twenty-two (22)
20 years of age;

21 3. Is likely to continue indefinitely;

22 4. Results in substantial functional limitations in three or
23 more of the following areas of major life activity:

24 a. self-care,

- b. receptive and expressive language,
- c. learning,
- d. mobility,
- e. self-direction,
- f. capacity for independent living, and
- g. economic self-sufficiency; and

5. Reflects the person's need for a combination and sequence of special, interdisciplinary, or generic care, treatment, or other services which are of lifelong or extended duration and are individually planned and coordinated. The term developmental disability shall not include mentally ~~ill~~ incompetent persons, as those persons are defined by Section 1-103 of Title 43A of the Oklahoma Statutes, whose sole disability is mental illness as defined by Section 1-103 of Title 43A of the Oklahoma Statutes.

D. Nothing in subsection C of this section shall be construed to render persons who are receiving services upon September 1, 1991, through programs and services for individuals with intellectual disabilities offered by the Department of Human Services as ineligible for such services. The Department of Human Services may provide, within the limitations of funds and other resources available for such purpose, programs and services for persons with developmental disabilities who are not presently served by the Department of Human Services.

SECTION 2. This act shall become effective November 1, 2026.

1 Passed the Senate the 11th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives